

ISLE OF MAN WORKPLACE PENSION
(the "Scheme")

DECLARATION OF TRUST
establishing the Scheme

Established 4TH SEPTEMBER 2014

DATE OF DECLARATION

4TH SEPTEMBER 2014

PARTIES

MOORE STEPHENS RETIREMENT SOLUTIONS LIMITED, a company incorporated in the Isle of Man (company number 123460C) and having its registered office at 26-28 Athol Street Douglas Isle of Man IM1 1JB (the “**First Trustee**”)

INTRODUCTION

- (A) The First Trustee wishes to establish a personal pension scheme capable of approval under Part 1 of the Income Tax Act 1989 and of registration as an authorised scheme under Section 3 of the Retirement Benefits Schemes Act 2000.
- (B) The First Trustee shall act as the first Trustee of the Scheme (as hereinafter defined).
- (C) The First Trustee shall act as the first administrator of the Scheme in accordance with Rule 3.1 (the “**Scheme Administrator**”).

OPERATIVE PROVISIONS

1. CONSTITUTION OF SCHEME

- 1.1. The First Trustee hereby establishes under irrevocable trusts with effect from and including the Effective Date as defined in clause 1.5 below, the Isle of Man Workplace Pension (the “**Scheme**”) to be governed by the terms of this deed (the “**Deed**”).
- 1.2. The rules (including the appendix thereto) in the Schedule to this Deed (the “**Rules**”) form part of this Deed. The provisions of the Rules shall override any other provision of this Deed with which they conflict.
- 1.3. As from the Effective Date (as hereinafter defined), the First Trustee is appointed as the first trustee of the Scheme and as the first Scheme Administrator.

- 1.4. The Trustee shall execute such documents, give such undertakings or take such other action as may from time to time be required to allow the Scheme to become and remain an Approved Scheme (as hereinafter defined).
- 1.5. The Scheme shall take effect from the date the Trustee first receives assets to be held subject to the trusts of the Scheme in accordance with the terms of the Deed (the “**Effective Date**”).

2. INTERPRETATION

2.1 Unless the context requires otherwise:

- 2.1.1. meanings assigned to words and expressions by Rule 2 or by any other provision of this Deed shall apply throughout;
- 2.1.2. any reference to a clause is to the relevant provision of this Deed (which, for present purposes, shall not include the Rules) and any reference to a Rule is to the relevant provision of the Rules;
- 2.1.3. save as otherwise expressly provided, words importing one gender include all other genders, words importing the singular include the plural and vice versa and any reference to a person includes a reference to a company, authority, board, department or other body;
- 2.1.4. terms not otherwise defined in this Deed or the Rules shall have the meanings ascribed to them under the 1989 Act, the 2000 Act or the General Administration Regulations, as the case may be;
- 2.1.5. all references to United Kingdom legislation shall refer to such legislation as applied in the Isle of Man from time to time.

2.2. Any reference to a legislative provision includes any amendment or re-enactment of it for the time being in force and any regulations made under it. Any reference to a particular part of a provision includes reference to any other relevant part of the provision.

2.3. Subject to clause 2.2, where the effect of a provision is explicitly subject to or limited by reference to a statutory provision, it shall remain subject or so limited to that statutory provision only for so long as such provision remains in

force.

3. SEPARATE TRUSTS

- 3.1. All assets, deposits, monies, other investments and rights and interests of any kind which are subject to the trusts of the Scheme shall be vested in the Trustee upon irrevocable trusts, to be applied in accordance with the provisions of the Scheme.
- 3.2. The Trustee shall hold each Fund upon trust to provide benefits to and in respect of the Member to whom such Fund relates in accordance with the provisions of the Scheme. The assets comprising each Fund will be held on a separate trust and the assets of one Fund will not be used to meet the liabilities of another Fund.
- 3.3. The Trustee shall maintain a separate record of each Fund and its investment or other application.

4. THE TRUSTEE

- 4.1. The Trustee shall be a body corporate acting as a sole trustee of the Scheme.
- 4.2. The Trustee shall be a trustee whose appointment is compliant with Section 3(7) of the 2000 Act. The resignation or removal of a Trustee shall not in any way contravene Section 3(7) of the 2000 Act. A successor Trustee must confirm in writing to the retiring Trustee its approval and its willingness so to act.
- 4.3. Subject to clause 4.2, a corporate body may act as Trustee whether or not it is a Trust Corporation as defined under Section 65A of the Trustee Act 1961. The Trustee shall carry on business in or from the Isle of Man except where a scheme administrator, registered in accordance with the 2000 Act, is responsible for the administration of the Scheme.
- 4.4. The powers, duties, authorities and discretions of the Trustee are to be exercisable either by its board of directors or by any one or more of its duly authorised officers.

- 4.5. Subject to clauses 4.2 and 4.3 and to Sections 18, 19 and 33 of the 2000 Act, the power of appointing a new trustee of the Scheme shall be vested in the Trustee and shall be exercisable by deed and in accordance with Section 18 of the 2000 Act.
- 4.6. Reference in this clause 4 to the appointment of a Trustee shall be deemed to apply mutatis mutandis to the appointment of a Scheme Administrator, in circumstances where the same person does not hold both appointments. Accordingly:
- 4.6.1. reference to Section 3(7) of the 2000 Act under clause 4.2 shall be deemed to refer to the registration of the Scheme Administrator in accordance with Section 3(4) of the 2000 Act; and
- 4.6.2. the appointment of a Scheme Administrator under this clause 4.6 is given effect via a simultaneous exercise of the Trustee's powers of delegation under clause 5.3.

5. POWERS, DUTIES AND DISCRETIONS OF THE TRUSTEE

- 5.1. The Trustee is granted all the powers, rights, privileges and discretions it may require for the proper implementation of the Scheme, including the performance of all duties imposed by law and may do anything expedient or necessary for the support, maintenance and administration of the Scheme and for the benefit of the Members and those claiming under them (including, for the avoidance of doubt, the institution, defence, compromise and settlement of legal proceedings, whether brought by or against a Member or otherwise).
- 5.2. The Trustee may effect such insurance for such risks and for such amounts as it considers prudent, including without limitation insurance against any loss or damage caused by any act or omission of the Trustee or any person appointed under this clause 5.
- 5.3. The Trustee may
- 5.3.1 delegate or authorise sub-delegation of any of its duties, powers and discretions, including without limitation the powers of appointment

under clause 5.4;

5.3.2 grant authority to execute deeds and any other documents and give receipts or discharges for any moneys or other property

to any one or more persons including without limitation its directors or other officers (subject to and in accordance with its articles of association and applicable company law requirements), the Scheme Administrator and any Members, subject to such terms as it thinks fit and, subject to Section 20 of the 2000 Act, shall not be liable for any loss arising as a consequence.

5.4. Subject to Section 18 of the 2000 Act and to Regulation 7 of the General Administration Regulations, the Trustee may appoint and remove (or arrange for the appointment and removal of):

5.4.1. any investment managers, nominees, custodians, sub-custodians or other persons concerned with the management or custody of assets in relation to the whole or any part of a Fund;

5.4.2. any agents, advisers and sub-contractors in the transaction of any business of the Scheme or in the administration of the Scheme;

5.4.3. any actuary, solicitor, advocate, accountant, auditor or other adviser;
or

5.4.4. any clerical or executive officers or staff as it may consider desirable (and may utilise the services of any officers or staff as the Trustee or Scheme Administrator may make available for this purpose);

in each case upon such terms, as to remuneration, liability and indemnity and otherwise, as it thinks fit.

5.5. Any person acting on the direction of the Trustee shall be entitled to assume, in the absence of actual notice to the contrary, that the direction is in accordance with the terms of the Scheme.

5.6. Any person to whom written authority of the Trustee is produced shall be entitled to assume, in the absence of actual notice to the contrary, that the authority is valid and has not been revoked.

5.7. Where the Scheme Administrator is required under the Rules to exercise a power of appointment under clause 5.4, the Scheme Administrator may do so only with the consent of the Trustee. Where such exercise of clause 5.4 applies, the references in clauses 5.5 and 5.6 to the Trustee shall be deemed to include the Scheme Administrator. The Trustee's consent given pursuant to this clause may be provided as a general, ongoing consent and need not be given on a case-by-case basis.

5.8. With regard to the application of the Trustee Act 2001;

5.8.1 the duty of care contained in Section 1 of the Trustee Act 2001 shall not apply to the Trustee in the exercise of any powers conferred on it under the terms of this Scheme nor to any duties relating to the exercise of such powers nor to the exercise by the Trustee of any powers contained in any other statute where that duty of care is expressed to be applicable; and

5.8.2 for the avoidance of doubt Sections 11 and 22 of the Trustee Act 2001 do not apply in respect of the Scheme and none of the restrictions on delegation to the Trustee in Sections 12 to 15 of the Trustee Act 2001 shall apply.

6. INVESTMENT

6.1. The Trustee may invest all or any part of a Fund in any manner and to any extent permitted to an Approved Scheme.

6.2. Subject to clause 6.3, the Trustee shall exercise the power in clause 6.1 in accordance with any directions given to it in writing by a Member (either directly or through an appointee in accordance with clause 6.7) in relation to the Fund applicable to such Member, unless to do so would in the opinion of the Trustee breach the provisions of the Scheme or prejudice the status of the Scheme as an Approved Scheme.

6.3. Notwithstanding clause 6.2, the Trustee may exercise the power in clause 6.1 in the absence of or contrary to any direction by the relevant Member:

6.3.1 to allow recovery of any amount under clause 7.6;

- 6.3.2 to allow payment of benefits or any other payment required for the proper execution of the trusts of the Scheme generally;
 - 6.3.3 if it is shown, to the satisfaction of the Trustee, that by reason of the Member's physical disability or mental incapacity he is unable to manage his affairs (for the purpose of this clause 6.3.3, the written opinion of a qualified medical practitioner may be accepted by the Trustee as conclusive evidence of this fact);
 - 6.3.4 if the Trustee is notified of the death of the Member (the Trustee may, but need not, refuse to accept any such notification unless it is accompanied by a death certificate);
 - 6.3.5 if to give effect or, as the case may be, to continue to give effect to, the exercise of that decision/direction would or, in the opinion of the Trustee, may breach any applicable law, regulation or regulatory requirement (which, for the avoidance of doubt, shall include any guidance issued by or on behalf of the Isle of Man Treasury in respect of the administration of investments within an Approved Scheme, whether or not such guidance has the binding force of law);
 - 6.3.6 if the occurrence of some event or circumstance is brought to the attention of the Trustee which (in its opinion) makes it inappropriate to continue to follow the directions of the Member; or
 - 6.3.7 if the occurrence of some event or circumstance is brought to the attention of the Trustee which (in its opinion) makes it appropriate to exercise its power under clause 6.1 notwithstanding the absence of any related Member direction.
- 6.4 The Trustee may enter into agreements with two or more Members to invest or apply all or part of each of those Members' Funds jointly in any of the ways permitted by this clause 6. The Trustee shall maintain such procedures for identifying the value of any such Member's Fund or part thereof as the Assessor may require and otherwise as the Trustee in its absolute discretion may determine. For the avoidance of doubt a Member may enter into different agreements in relation to different parts of the Fund applicable to him.

6.5 Any reference under the terms of the Scheme to the making of an investment shall be taken to include, without limitation, any of the following and investments shall be construed accordingly:

6.5.1 investment in stocks, shares, debentures or interests in land and any other form of investment or other property whether moveable or immoveable and whether in possession or in reversion and whether or not producing income;

6.5.2 investment in units in unit trusts, exempt funds or mutual funds or shares in open-ended investment companies;

6.5.3 investment in any annuity, assurance, deposit administration, sinking fund or managed fund policies or contracts;

6.5.4 underwriting or guaranteeing the issue of any shares, securities or obligations of any kind;

6.5.5 dealing in financial futures and traded options (as an investment);

6.5.6 entry into any other form of contract, including any other policy or contract of insurance or assurance;

6.5.7 the establishment and operation of accounts with any local authority, bank, insurance company, building society or finance company, whether interest bearing or not and in any case subject to such regulations as the Trustee shall think fit for the operation of such account;

6.5.8 the grant of any form of security;

6.5.9 making or entering into any other application, sale, loan (whether or not secured), lease, licence, surrender, assignment, conversion, repair, alteration, improvement, maintenance, development, demolition, variation or transposition of any investments, assets and monies relating to a Fund;

6.5.10 borrowing for any purpose, whether with or without security; and/or

6.5.11 making any other investment within the meaning of Part 1 of Schedule 2 of the Regulated Activities Order 2011 (Statutory Document No. 0844/11);

whether done alone or jointly with the trustees of any other pension scheme or arrangement or any other person and whether or not the Trustee or any Member or any delegate, agent, adviser or other person appointed under clause 6, or any person connected or associated with any of them, is a party to any transaction concerned or otherwise has a personal interest or interest in another fiduciary capacity.

- 6.6 The Trustee may exercise any of the powers in this clause as if it were absolutely entitled to the relevant part of a Fund and may deal with investments as principal.
- 6.7 A Member may appoint any person acceptable to the Trustee for the purposes of directions to be given by him in accordance with this clause and shall provide to the Trustee any information or assurance that the Trustee may request in connection with the appointment.
- 6.8 Upon and with effect from the death of a Member, at the discretion of the Trustee references to 'Member' in clauses 6.2 to 6.7 shall be taken to include an individual who, in relation to a Member, is a beneficiary under the terms of the Scheme.
- 6.9 Where the Scheme Administrator is required under the Rules to exercise any of the investment provisions under clause 6, the Scheme Administrator may do so only with the consent of the Trustee. Where such exercise of clause 6 applies, the references in clause 6 to the Trustee shall be deemed to include the Scheme Administrator. The Trustee's consent given pursuant to this clause may be provided as a general, ongoing consent and need not be given on a case-by-case basis.

7. LIABILITY OF TRUSTEE, RECOVERY OF CHARGES, EXPENSES ETC.

- 7.1. Subject to Section 20 of the 2000 Act, the Trustee shall not be liable, responsible or chargeable in any manner whatsoever except in the event of its own negligence constituting a deliberate breach of trust committed in deliberate disregard of the proper instructions of Members, or fraud.
- 7.2. No Member or any other person shall have any claim, right or interest under the Scheme or any claim against the Trustee in connection with the Scheme except under or in accordance with the provisions of the Scheme from time to time. The Trustee shall not be liable for any acts or omissions not due to its own wilful neglect or wilful default and, in particular, shall have no responsibility to or in respect of a Member in connection with investments made in accordance with clause 6. The Member in respect of whose Fund there has been any loss shall keep the Trustee indemnified against the consequence of the exercise of all of the Trustee's powers and discretions. Any liability of the Trustee in relation to a Member shall be limited to the assets of the Scheme attributable to that Member's Fund.
- 7.3. Subject to Section 20 of the 2000 Act:
- (a) in the professed execution of the trusts, powers and discretions, no Trustee shall be liable for any loss to the Scheme arising by reason of any improper investment made in good faith; and
 - (b) the Trustee shall not be liable for the negligence or fraud of any agent employed by it although the employment of that agent may not have been strictly necessary or expedient, provided the appointment of the agent was made in good faith.
- 7.4. In this clause 7 "Trustee" includes, unless the context otherwise requires, each former Trustee of the Scheme and each person who is or was a director, officer or employee of any company which is or was a Trustee of the Scheme at any time while he is or was such a director, officer or employee.
- 7.5. If the inclusion of any words in clauses 7.1 to 7.3 would at law render ineffective the protection of the Trustee then the relevant clause is to be read with such words omitted.

7.6. The Trustee may without the agreement of Members affected thereby recover out of their Funds any charges imposed by the Trustee in accordance with such terms as the Trustee may notify to Members from time to time together with any losses, liabilities, costs, charges or expenses (including any costs, charges or expenses of persons appointed pursuant to clause 5) or other amounts the Trustee may suffer or incur in connection with or in relation to:

7.6.1 any investment (whether or not made with the Member's consent);

7.6.2 any proceedings brought in order to comply or procure compliance by Members or other persons with any obligation imposed by law or by this Deed or any agreement made under it;

7.6.3 any unsuccessful actions, proceedings or claims brought by or on behalf of a Member;

7.6.4 any other actions, proceedings or claims (excluding those brought by a Member and not covered by clause 7.6.3);

7.6.5 any liability to Taxation or other imposition of any kind in respect of any payment to be made to or in respect of a Member;

7.6.6 any valuation of Scheme assets or assets that are proposed to be transferred into the Scheme; and

7.6.7 the execution of the trusts of the Scheme generally

and the Trustee shall retain amounts so recovered for its own benefit.

7.7. Each Member shall indemnify and keep indemnified the Trustee against any amounts described in clause 7.6 to the extent the same are not recoverable by the Trustee under that clause.

7.8. Notwithstanding clause 7.6 the Trustee shall not be obliged to bring, pursue or defend any proceedings in relation to the Scheme.

7.9. No decision of the Trustee shall be invalidated by any personal interest or interest in another fiduciary capacity of the Trustee.

7.10. References in this clause 7 to the Trustee shall be construed as including any

director, officer or employee of the Trustee.

- 7.11. Upon and with effect from the death of a Member, references to 'Member' in clauses 7.1, 7.2, 7.6 and 7.7 shall be taken to include an individual who, in relation to a Member, is a beneficiary under the terms of the Scheme.
- 7.12. To the extent applicable, references in this clause to the Trustee shall be taken to include the Scheme Administrator in respect of its administration of the Scheme.

8. QUESTIONS AND MATTERS OF DOUBT

- 8.1. The Trustee may determine all questions and matters of doubt arising in connection with the Scheme including whether or not any person is entitled to any benefit and the amount of any benefit. In the absence of manifest error that determination shall be conclusive.
- 8.2. The Trustee shall not be required to make any payment of benefit from the Scheme until such forms of discharge as the Trustee may require are satisfactorily completed and the Trustee is satisfied inter alia that:
- 8.2.1. the event upon which the benefit becomes payable has occurred;
- 8.2.2. the claimant is entitled to receive the benefit; and
- 8.2.3. where relevant, the date of birth of the Member is as stated in the Application Pack.

9. VARIATION

- 9.1 Subject to Section 18 of the 2000 Act and the provisions of this clause, the Trustee without the consent of the Members or of any other beneficiary may by deed or written instrument alter, add to or delete all or any of the provisions of this Deed and the Rules with immediate, future or retrospective effect.
- 9.2 The power of variation under this clause cannot be exercised to the extent it would prejudice Approval.

- 9.3 The power of variation under this clause shall continue to be exercisable throughout the winding up of the Scheme.

10. NOTICES

- 10.1 Any notice required to be served under the provisions of the Scheme on the Trustee or the Scheme Administrator or that is otherwise sent to them shall be sent by post to their respective registered offices or such other address as they may notify in writing for that purpose from time to time or by sending it to them by facsimile or by electronic mail to the last number or address, as the case may be, communicated by the Trustee or Scheme Administrator for that purpose from time to time.
- 10.2 Any notice to any Member or any other person in respect of any matter affecting the Scheme or required to be given under the provisions of the Scheme may be given by handing it to him personally or by sending it addressed to him through the post, by facsimile or by electronic mail (in all cases at the last number or address, as the case may be, communicated to the Trustee or the Administrator by him for that purpose).
- 10.3 With respect to notice to be given under the Scheme, notice sent through the post shall be sent in a prepaid envelope and shall be deemed served seven days after the same shall have been posted. Any such notice sent by facsimile or electronic mail shall be deemed served the day after the same was sent. In proving such service it shall be sufficient to prove that the notice was properly addressed and posted or sent.
- 10.4 Any requirement for written notice to be given under the Scheme shall be discharged or deemed to be discharged by service of notice in any of the forms referred to in this clause 10 as applicable.
- 10.5 The Trustee and the Scheme Administrator may disclose any information provided to it in relation to the Scheme (by, on behalf of or in relation to any Member or any other person) to any affiliates of theirs and to any agents or service providers appointed by them or any such affiliates in relation to the Scheme.

- 10.6 Any person entitled to receive notice under the provisions of the Scheme may agree in writing to waive or accept any such shorter notice as he sees fit.

11. RECORD KEEPING AND DISCLOSURE

- 11.1. The Trustee shall maintain all such records as are required of it under Regulation 10 of the General Administration Regulations.
- 11.2. The Trustee and Scheme Administrator (together with the auditor, actuary or investment manager, if appointed) shall comply with all relevant disclosure obligations including (but not limited to) those under Section 41 of the 2000 Act.
- 11.3. Each Member or person claiming in respect of him shall provide, or shall procure that there is provided, to the Trustee or, at the Trustee's direction, to the Scheme Administrator such evidence of age, marital status, identity, death, survival or any other matters as the Trustee shall reasonably request and the Trustee may withhold payment of any benefit until it has received such evidence.

12. PERPETUITIES

The Scheme shall be wound up on the one hundred and fiftieth anniversary of its establishment or at the expiry of any further period for which it may then lawfully be continued.

13. PROPER LAW OF TRUST

- 13.1 The provisions of the Scheme shall be construed and take effect according to the law of the Isle of Man, which shall be the proper law hereof.
- 13.2 The Trustee may from time to time declare that the trusts hereof shall take effect and be administered under a proper law other than the law of the Isle of Man PROVIDED THAT, under that other proper law, the provisions hereof can take full effect and provided always that so often as any such declaration as aforesaid shall be made the Trustees shall be at liberty to make such consequential alterations or additions in or to the trust powers and provisions of the Scheme as the Trustee may consider necessary or desirable to ensure that the trust powers and provisions of the Scheme shall (*mutatis mutandis*)

be valid and effective under the new proper law as they are under the law of the Isle of Man.

EXECUTION: Moore Stephens Retirement Solutions Limited, in its capacity as the First Trustee and as the Scheme Administrator has shown its acceptance of the terms of this Deed by executing it at the end of the Schedule to this Deed.

Schedule

The Rules

ISLE OF MAN WORKPLACE PENSION